

- (g) **One Bid per Bidder:** We are not submitting any other Bid(s) as an individual Bidder, and meet the requirements of ITB 4.2;
- (h) **Suspension:** We, along with any of our subcontractors, suppliers, consultants, manufacturers, or service providers for any part of the contract, are not subject to, and not controlled by any entity or individual that is subject to, a temporary suspension or a blacklist as specified in Section 2, Clause 1.3. Further, we are not ineligible under the Purchaser's country laws or official regulations or pursuant to a decision of the United Nations Security Council;
- (i) **Binding Contract:** We understand that this Bid, together with your written acceptance thereof included in your Letter of Acceptance, shall constitute a binding contract between us, until a formal contract is prepared and executed;
- (j) **Not Bound to Accept:** We understand that you are not bound to accept the lowest evaluated cost/price Bid, the Most Advantageous Bid or any other Bid that you may receive;
- (k) **Fraud and Corruption:** We hereby certify that we have taken steps to ensure that no person acting for us, or on our behalf, engages in any type of Fraud and Corruption; or any type of Prohibited Practices We, along with any of our subcontractors, suppliers, consultants, manufacturers, or service providers for any part of the contract, are not subject to, and not controlled by any entity or individual that is subject to, a temporary suspension or a debarment or any ineligibility imposed or recognized by the Asian Infrastructure Investment Bank (the Bank). Further, we are not ineligible under the Employer's Country laws or official regulations or pursuant to a decision of the United Nations Security Council. We agree to permit the Bank or its representative to inspect our accounts and records and other documents relating to the bid submission and to have them audited by auditors appointed by the Bank.
- (l) ***(applicable only if the bidder is a Joint Venture as per Section 2 of RFB/ bidding document)*** We have bid as a Joint Venture as per Section 2 of RFB/ bidding document) and in accordance with Clause 2.2.7 of Section 2 we declare and confirm that all partners of the joint venture shall be liable jointly and severally for the execution of the contract in accordance with the contract terms;
- (m) We submit appended herewith, as integral part of the Technical Part of our bid, the details/ documents as listed in the table below in the Forms duly filled, as prescribed, along with supporting documentary evidence as required/ specified. We understand and confirm that we would be solely responsible for any errors or omissions in our Bid and your decision in regard to sufficiency and/ or adequacy of the details/ documents comprising our Bid for determining its completeness shall be final and binding.

Sr.	Document	Status (Submitted/ Not Submitted/ Not Applicable)
1.	This Letter of Bid as per format prescribed in Form 1 given in Section 4 of RFB/ bidding document	

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Sr.	Document	Status (Submitted/ Not Submitted/ Not Applicable)
2	Bidder Information as per the format prescribed in Form 2 given in Section 4 of RFB/ bidding document	
3	Bid Security or Bid Securing Declaration, as may be specified in ITB 18 Section 3 of RFB/ bidding document, in the form of specified in ITB. Bid Securing Declaration in format prescribed in Form 3A given in Section 4, and Bid Security in the form of Bank Guarantee in format prescribed in Form 3B given in Section 4 of RFB/ bidding document.	
4.	Power of Attorney by Lead Joint Venture Member/ Sole Bidder authorizing an Individual Designated Representative for the Joint Venture Bidder/ Sole Bidder as per the format prescribed in Form 4 given in Section 4 of RFB/ bidding document	
5.	Declaration of conformance of the Bidder and the Facilities offered, to the specified eligibility requirement specified in Section 2 and Section 3, as per the format prescribed in Form 5 given in Section 4 of RFB/ bidding document	
6.	Local Content Certificate for Class I Local Supplier, as specified in Clause 1.5 of Section 2 of RFB/ bidding document, Affidavit of Self certification as per the format prescribed in Form 6 given in Section 4 of RFB/ bidding document or by certificate (format not specified) of Statutory Auditor, as may be applicable	
7	Power of Attorney by each member/ partner of the Joint Venture in favour of Lead member/ partner as per format prescribed in Form 7 given in Section 4 of RFB/ bidding document (<i>applicable only for Joint Venture Bidder</i>)	
8 A	Joint Deed of Undertaking (JDU) signed by each member/ partner of the Joint Venture, as per format prescribed in Form 8 given in Section 4 of RFB/ bidding document (<i>applicable only for Joint Venture Bidder</i>)	
8 B	Joint Venture Agreement entered into amongst all the partners/ members of the Joint Venture in their own format but without violating any of the requirements of the bidding documents and necessarily including the confirmation as specified in Clause 2.2.7 of Section 2 of RFB/ bidding document (<i>applicable only for Joint Venture Bidder</i>)	
9	Details/ Data and documentary evidence in support of meeting the Qualification Requirement specified in Section 2 of RFB/ bidding document, as per the format prescribed in Form 9 given in Section 4 of RFB/ bidding document	

Sr.	Document	Status (Submitted/ Not Submitted/ Not Applicable)
10.	The details of all major items of Plant and Installation Services proposed to be subcontracted in case of award, indicating name and nationality of the proposed subcontractor/sub-vendor for each item, as per the format prescribed in Form 10 given in Section 4 of RFB/ bidding document. as per the format prescribed in Form 1 given in Section 4	
11.	Form of Undertaking on Compliance of Terms & Conditions of the RFB/ bidding document including Scope of Work and other related requirements, as per the format prescribed in Form 11 given in Section 4 of RFB/ bidding document, <i>subject to Sl No. 12 below of this table</i>	
12	Statement of Deviation from the requirements specified in the RFB/ bidding documents including Conditions of Contract, Employer's Requirement/ Specification and Drawings etc, including, inter alia, the cost of withdrawal thereof, as per the format prescribed in Form 12 given in Section 4 of RFB/ bidding document	
13	Work Completion Schedule, as per the format prescribed in Form 13 given in Section 4 of RFB/ bidding document	
14	Guarantee Declaration, as per the format prescribed in Form 14 given in Section 4 of RFB/ bidding document	
15	Information regarding ex-employees of Employer in our firm, as per the format prescribed in Form 15 given in Section 4 of RFB/ bidding document	
16	Filled up information regarding Price Adjustment Data, as per the format prescribed in Form 16 given in Section 4 of RFB/ bidding document	
17	Option for Interest bearing Initial Advance payment and Information for E-payment, PF details and declaration regarding Micro/Small & Medium Enterprises, as per the format prescribed in Form 17 given in Section 4 of RFB/ bidding document	
18	Declaration for tax exemptions, reductions, allowances or benefits, as per the format prescribed in Form 18 given in Section 4 of RFB/ bidding document	
19	Bank Guarantee verification checklist, as per the format prescribed in Form 19 given in Section 4 of RFB/ bidding document	
20	Additional Information, if any, as per the format prescribed in Form 20 given in Section 4 of bidding	

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Sr.	Document	Status (Submitted/ Not Submitted/ Not Applicable)
	document	
21	Integrity Pact, duly signed on each page by the person signing the bid, as per the format prescribed in Form 21 given in Section 4 of bidding document	

- (n) We are also submitting herewith the Financial Part of our Bid, online separately, as per the prescribed Forms given in Section 5 of bidding document, complete in all respects in electronic form only, as per the requirements of bidding document. We confirm that the same does not contain any deviation, reservation or omission, failing which it is liable to be rejected.

(o) **Contact Person**

Details of the contact person representing us supported by the Power of Attorney, as prescribed, are furnished as under:

Name:
 Designation:
 Company:
 Address:
 Mobile:
 Phone:
 Fax:
 Email:

Dated the *[Insert date of the month]* day of *[Insert month, year]*
 at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))} [#] {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}
 Title: {insert title/position of authorized Bid Signatory}
 Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):
 Capacity: {insert the person's capacity to sign for the Bidder}
 Address: {insert the authorized Bid Signatory's address}
 Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}
 Email: {insert the authorized Bid Signatory's email address} _____

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[#]{For a joint venture, either all members shall sign or only the authorised signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 2**(Appendix to Technical Part of the Bid)****Format for Bidder Information Sheet**

[The Bidder shall fill in this Form in accordance with the instructions indicated below. No alterations to its format shall be permitted and no substitutions shall be accepted.]

NIT/RFB No.:

Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

1. Bidder's Legal Name
2. Legal Status of the Bidder
3. Bidder's Country of Registration:
4. Bidder's Year of Registration:
5. Bidder's Legal Address in Country of Registration:
6. Bidder's Authorized Representative Information Name: Address: Telephone/Fax numbers: Email Address:
7. Attached are copies of original documents of <i>[check the box(es) of the attached original documents]</i> ○ Self-certified copy of the document to establish legal status of the firm viz. Certificate of Incorporation issued under the Companies Act / The Limited Liability Partnership Act / Partnership deed etc. as applicable; ○ Self-certified copy of PAN ○ Self-certified copy of GST Registration; ○ Self-certified copy in support of MSME, if applicable ○ Organizational chart including a list of Board of Directors/ Key Management Personnel's.
Note : In case of JV/ Consortium, the afore details/ documents are to be furnished for each of the JV/ Consortium Members

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Dated the *[Insert date of the month]* day of *[Insert month, year]*
 at *[Insert place]*.

 Signature {(of Bidder's' authorized Bid Signatory (ies))} # {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 3A**(Appendix to Technical Part of the Bid)****Format of Bid Securing Declaration
(if applicable)****BID SECURING DECLARATION**

Whereas, I/We (name of Bidder) ----- have submitted Bid for -----
 ----- (name of Package) in response to Request For Bid (RFB) no: -----
 dated -----

I/We hereby submit following declaration in lieu of Bid Security/ Earnest Money Deposit:

1. If after the opening of Proposal, I/We withdraw and/or modify my/our Proposal during its period of validity (including extended validity) as specified in the RFB document,
Or
2. If, after the issue of Notification of Award of the Contract, I/We fail to sign the Contract, or to submit Contract Performance Guarantee before the deadline specified in the RFB document,
Or
3. If, in case of I/ we fail to ensure that the Contract becomes Effective as specified in the RFB document.

I/we shall be suspended from and shall not be eligible to participate for a period of as per MSEDCL debar & black listing policy year from date of issue of the suspension order, in the bidding against any of the Notice Inviting Tenders/ Invitation For Bids/ Request for Proposal/ Bid etc. issued by The Chief Engineer (Spl. Projects), MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED during that period.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
 at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))[#] {In full and initials}}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

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[#]{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 3B**(Appendix to Technical Part of the Bid)****Format of Bank Guarantee for Bid Security**

{To be on non-judicial stamp paper of Rupees One Hundred Only (INR 100/-) or appropriate value as per Stamp Act relevant to place of execution, duly signed on each page.}

Reference No.
.....

Bank Guarantee No.

Dated:

To:

The Chief Engineer (Spl. Projects)
MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED
Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051

Dear Sir/ Madam,

WHEREAS..... [Insert name of the Sole Bidder] / [insert name of the Lead Joint Venture Member followed by the words “ representing Joint Venture of [insert names of all the members of Joint Venture]”] with address [Insert address of Sole Bidder /Lead Joint Venture Member] having its registered office at [Insert address of the Sole Bidder /Lead Joint Venture Member] (Hereinafter, the “Bidder”) wishes to participate in Tender No. [Tender Details] (the “RFB”) issued by MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED (hereinafter, the “Utility”) for [name of the Packge/ Contract title].

And WHEREAS a Bank Guarantee for [Amount] valid till [Date] is required to be submitted by the Bidder along with the RFB.

We,[Insert name of the Bank and address of the Branch giving the Bank Guarantee] having our registered office at[Insert address of the registered office of the Bank] hereby give this Bank Guarantee No.[Insert Bank Guarantee number] dated[Insert the date of the Bank Guarantee], and hereby agree unequivocally and unconditionally to pay immediately on demand in writing from the Utility any officer authorized by it in this behalf any amount not exceeding [Amount] to the said Utility on behalf of the Bidder.

We [Insert name of the Bank] also agree that withdrawal of the Bid or part thereof by the Bidder within its validity or not signing the Contract Agreement or non-submission of Performance Security by the Bidder within the stipulated time of the Letter of Award to the Bidder or any violation to the relevant terms stipulated in the RFB would constitute a default on the part of the Bidder and that this Bank Guarantee is liable to be invoked and encashed within its validity by the

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Utility in case of any occurrence of a default on the part of the Bidder and that the amount is liable to be forfeited by the Utility.

This Guarantee shall be valid and binding on this Bank up to and inclusive of
[Insert the date of validity of the Bank] and shall not be terminable by notice or by Guarantor for the reason of change in the constitution of the Bank or the firm of the Bidder or by any reason whatsoever and our liability hereunder shall not be impaired or discharged by any extension of time or variations or alternations made, given, conceded with or without our knowledge or consent by or between the Bidder and the Utility.

NOTWITHSTANDING anything contained hereinbefore, our liability under this guarantee is restricted to [Amount]. Our Guarantee shall remain in force till [Date]. Unless demands or claims under this Bank Guarantee are made to us in writing on or before [Date], all rights of the Beneficiary under this Bank Guarantee shall be forfeited, and we shall be released and discharged from all liabilities there under.

<i>[Insert the address of the Bank with complete postal branch code, telephone and fax numbers, and official round seal of the Bank]</i>	<i>[Insert signature of the Bank's Authorized Signatory]</i>
<i>Attested</i>	
..... [Signature] (Notary Public)	
Place:	Date:

INSTRUCTIONS FOR SUBMITTING BANK GUARANTEE

1. Bank Guarantee to be executed on non-judicial stamp paper of appropriate value as per Stamp Act relevant to place of execution.
2. The Bank Guarantee by Bidder shall be given from any Scheduled Commercial Bank.
3. The full address along with the Telex/Fax No. and e-mail address of the issuing bank to be mentioned.

Form 4**(Appendix to Technical Part of the Bid)****Format of Power of Attorney of designated Bid Signatory by sole bidder/ lead joint venture member**

[To be on non-judicial stamp paper of Rupees One Hundred Only (INR 100/-) or appropriate value as per Stamp Act relevant to place of execution.]

Know all men by these presents, we*[Insert name and address of the registered office of the Lead Consortium Member of the Bidding Consortium/ Sole Bidder]* do hereby constitute, appoint, nominate and authorize Mr./Ms. *[Insert name and residential address]*, who is presently employed with us and holding the position of as our true and lawful attorney, to do in our name and on our behalf, all such acts, deeds and things necessary in connection with or incidental to submission of our Bid in response to RFB/ Tender No.

[RFB/ Tender Details] for Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including works guarantee as per standard bidding documents on single point responsibility, indivisible "Turnkey" contract basis in _____ Zone in **MAHARASHTRA STATE** *[Insert name of Package/ Contract title]* (the "Project") issued by MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY including signing and submission of the Bid and all other documents related to the Bid, including but not limited to undertakings, letters, certificates, acceptances, clarifications, guarantees or any other document which Utility may require us to submit. The aforesaid attorney is further authorized for making representations to Utility, and providing information / responses to Utility, representing us in all matters before Utility, and generally dealing with Utility in all matters in connection with our Bid till the completion of the bidding process as per the terms of the RFB.

We hereby agree to ratify all acts, deeds and things done by our said attorney pursuant to this Power of Attorney and that all acts, deeds and things done by our aforesaid attorney shall be binding on us and shall always be deemed to have been done by us.

All the terms used herein but not defined shall have the meaning ascribed to such terms under the RFB.

Signed by the within named *[Insert the name of the executant company]* **through the hand of Mr./ Mrs.** **duly authorized by the Board/ Owner to issue such Power of Attorney dated this** **day of**

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Accepted

..... (Signature of Attorney)
 [Insert Name, designation and address of the Attorney]

Attested

.....
 (Signature of the executant)
 (Name, designation and address of the executant)

.....
 Signature and stamp of Notary of the place of execution

Common seal of has been affixed in my/our presence pursuant to Board of Director's Resolution dated..../ Owner

1. **WITNESS 1.** (Signature)
Name
Designation.....
 2. **WITNESS 2.** (Signature)
Name
Designation....._

Notes:

- a. *The mode of execution of the power of attorney should be in accordance with the procedure, if any, laid down by the applicable law and the charter documents of the executant(s).*
- b. *In the event, power of attorney has been executed outside India, the same needs to be duly notarized by a notary public of the jurisdiction where it is executed.*
- c. *Also, wherever required, the executant(s) should submit for verification the extract of the charter documents and documents such as a Board resolution / power of attorney, in favor of the person executing this power of attorney for delegation of power hereunder on behalf of the executant(s).*

Form 5

(Appendix to Technical Part of the Bid)

Format of Declaration of conformance of the Bidder and the Facilities offered, to the specified eligibility requirement

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Bidder's Name and Address:

To: The Chief Engineer (Spl. Projects)

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED, Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

We hereby certify that Plant and Installation Services offered to be supplied by us fully comply with all the eligibility and other requirements specified in Section 2 and Section 3 of RFB/ bidding documents.

We hereby certify that our firm is legally established in India and we fully comply with the eligibility and other requirements specified in Section 2 and Section 3 of RFB/ bidding documents,

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

#*{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}*

Form 6

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(Appendix to Technical Part of the Bid)

Format for Affidavit of Self certification regarding Local Content in line with PPP-MII order and #MoP Order/DoT order*[if applicable, to be provided on a non-judicial stamp paper of Rs. 100/-]*NIT/RFB No.: *[insert details]*Package Name/ Contract Title: *[insert details]*

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects)

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED,

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai – 400051*{In case of JV bidder, mention name and address of all the Joint Venture members}*

I We _____ S/o, D/o, W/o, _____ Resident
of _____, on behalf of the
firm(s) named above, hereby solemnly affirm and declare as under:

That we will agree to abide by the terms and conditions of the Public Procurement (Preference to Make in India) Order, 2017 of Government of India issued vide Notification No:P-45021/2/2017 -BE-II dated 15/06/2017, its revision dated **04/06/2020** (hereinafter **PPP-MII order**),

#‘Public Procurement (Preference to Make in India) to provide for Purchase Preference (linked with local content)’ order dated 28/07/2020 issued by Ministry of Power (hereinafter MoP order)

Or

#Public Procurement (Preference to Make in India) Order, 2017- Notification of Telecom products, Services or Works issued vide Notification No. 18-10/2017-IP dated 29.08.2018 by Department of Telecommunications (DoT), (hereinafter, **DoT-Order**)

and any subsequent modifications/Amendments, if any and

That the information furnished hereinafter is correct to the best of my knowledge and belief and I undertake to produce relevant records before the procuring entity/POWERGRID or any other Government authority for the purpose of assessing the local content of plant/ goods/material/ services/works supplied by me for
LRB/Phase 1/2/22-23 and

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[insert the reference of RFB and name of Package/ Contract title].

That the local content for all inputs which constitute the said plant/ goods/material/ services/works has been verified by me and I am responsible for the correctness of the claims made therein.

That the ‘Local Content ‘as defined in the PPP-MII order and #MoP order /DoT order in the plant/goods/material/ services/works supplied by me for Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including works guarantee as per standard bidding documents on single point responsibility, indivisible “Turnkey” contract basis in in **MAHARASHTRA STATE (insert the name of the package) is percent (%)**.

That the plant/goods/material/ services/works supplied by me for Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and commissioning of New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including works guarantee as per standard bidding documents on single point responsibility, indivisible “Turnkey” contract basis in **Zone in MAHARASHTRA STATE**

. (insert the name of the package) meet the ‘Local Content’ requirement as defined in the PPP-MII order **and #MoP order /DoT order for ‘Class –I local supplier’/‘Class-II Local supplier (choose as applicable)**.

That the value addition for the purpose of meeting the ‘Local Content ‘has been made by me at *(insert the details of the location(s) at which value addition is made).*

That in the event of the local content of the plant/goods/material/ services/works mentioned herein is found to be incorrect and not meeting the prescribed Local Content criteria, based on the assessment of procuring agency (ies)/ **MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED /Government Authorities for the purpose of assessing the local content, action shall be taken against me in line with the PPP-MII order, #MoP order/ DoT order and provisions of the Integrity pact/ Bidding Documents.**

I agree to maintain the following information in the Company's record for a period of 8 years and shall make this available for verification to any statutory authority.

- i Name and details of the Local Supplier
(Registered Office, Manufacturing unit location, nature of legal entity)
- ii. Date on which this certificate is issued
- iii. Plant/goods/services/works for which the certificate is produced
- iv. Procuring entity to whom the certificate is furnished
- v. Percentage of local content claimed and whether it meets the Local Content prescribed for **‘Class –I local supplier’/‘Class-II Local supplier (choose as applicable)**

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- vi. Name and contact details of the unit of the Local Supplier (s)
- vii. Sale Price of the product
- viii Ex-Factory Price of the product
- ix. Freight, insurance and handling
- x. Total Bill of Material
- xi List and total cost value of input used to manufacture the Goods/to provide services/in construction of works
- xii. List and total cost of input which are domestically sourced. Value addition certificates from suppliers, if the input is not in-house to be attached
- xiii. List and cost of inputs which are imported, directly or indirectly

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

{For a joint venture, or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

choose as applicable while preparing bidding documents

Form 7
(Appendix to Technical Part of the Bid)

**Format of Power of Attorney by Each Member/ Partner of The Joint Venture in
favour of Lead Member/ Partner**

KNOW ALL MEN BY THESE PRESENTS THAT WE , the Partners whose details are given hereunder have formed a Joint Venture under the laws of and having our Registered Office(s)/Head Office(s) at (hereinafter called the 'Joint Venture' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) acting through M/s being the Partner in-charge, do hereby constitute, nominate and appoint M/s..... a Company incorporated under the laws of and having its Registered/Head Office at as our duly constituted lawful Attorney (hereinafter called "Attorney" or "Authorized Representative" or "Partner In-charge" or "Lead Partner" or "Lead Member" or "Leader") to exercise all or any of the powers for and on behalf of the Joint Venture in regard to Request for Bids (RFB)/ Request for Proposals (RFP) No. **CE/Spl. Projects/System Strengthening /ADB/2026-27/T-__ (____ Zone)** for Package T-__ the bids for which have been invited by Office of the Chief Engineer (Spl. Projects), MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED, Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051 (hereinafter called the 'Employer') to undertake the following acts:

- i) To submit proposal/ Bid and participate in the aforesaid Bidding, against the RFB/ RFP issued of the Employer, on behalf of the "Joint Venture".
- ii) To negotiate with the Employer the terms and conditions for award of the Contract pursuant to the aforesaid Bid and to sign the Contract with the Employer for and on behalf of the "Joint Venture".
- iii) To do any other act or submit any document related to the above.
- iv) To receive, accept and execute the Contract for and on behalf of the "Joint Venture".

It is clearly understood that the Partner In-charge (Lead Partner/ Lead Member) shall ensure performance of the Contract(s) and if one or more Partner fail to perform their respective portions of the Contract(s), the same shall be deemed to be a default by all the Partners.

It is expressly understood that this Power of Attorney shall remain valid binding and irrevocable till completion of the Defect Liability Period in terms of the Contract.

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The Joint Venture hereby agrees and undertakes to ratify and confirm all and whatsoever the said Attorney/Authorized Representatives/Partner in-charge/ Lead Partner/ Lead Member quotes in the bid, negotiates and signs the Contract with the Employer and/or proposes to act or acts on behalf of the Joint Venture by virtue of this Power of Attorney and the same shall bind the Joint Venture as if done by itself.

IN WITNESS THEREOF the Partners Constituting the Joint Venture as aforesaid have executed these presents on this day of under the Common Seal(s) of their respective Companies.

for and on behalf of the
Partners of Joint Venture

.....
.....
.....

The Common Seal of the above Partners of the Joint Venture:

The Common Seal has been affixed there unto in the presence of:

WITNESS

1. Signature.....

Name

Designation

Occupation

2. Signature.....

Name

Designation

Occupation

Note:

1. For the purpose of executing the power of attorney, the non-judicial stamp papers of appropriate value shall be purchased in the name of Joint Venture.
2. The power of attorney shall be signed on all the pages by the authorized representatives of each of the partners and should invariably be witnessed and notarized.

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Form 8

(Appendix to Technical Part of the Bid)

Format of Joint Deed of Undertaking by the Joint Venture Partners/ Members

THIS JOINT DEED OF UNDERTAKING executed on this..... day of..... Two Thousand and..... bya company incorporated under the laws of and having its Registered Office at(hereinafter called the "Party No.1" which expression shall include its successors, executors and permitted assigns) and M/s.....a company incorporated under the laws of and having its Registered Office at (hereinafter called the "Party No.2" which expression shall include its successors, executors and permitted assigns) and M/s..... a Company incorporated under the laws of and having its Registered Office at (hereinafter called the "Party No.3" which expression shall include its successors, executors and permitted assigns) for the purpose of making a bid and entering into a contract [hereinafter called the "Contract" {in case of award}] against the Request For Bids (RFB)/ Request for Proposal (RFP) No Tender No. CE/Spl. Projects/System Strengthening/ADB/2026-27/T-__ (_____ Zone) for Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including works guarantee as per standard bidding documents on single point responsibility, indivisible "Turnkey" contract basis in *(insert name of the package along with project name)* of The Chief Engineer (Spl. Projects), MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED, a Company incorporated under the Companies Act of 1956 having its registered office at **Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051** (hereinafter called the "Employer").

WHEREAS the Party No.1, Party No.2 and Party No.3 have entered into an Agreement dated.....

AND WHEREAS the Employer invited bids as per the above mentioned Package for the design, supply and installation of the Plant as stipulated in the Bidding Documents for Turnkey e-tenders are invited for supply, test, transport, construction, erection, testing and New Substations, Augmentation of Substations, Additional Power Transformers, HT Lines and other allied works, including works guarantee as per standard bidding on single point responsibility, indivisible "Turnkey" contract basis in **DISTRICT** *(Insert name of the package along with project name)*

AND WHEREAS as per Section 2/ Section 3 of the Bidding Documents, inter-alia stipulates that a Joint Venture, as specified therein, may bid, provided, the Joint Venture and the partners/ members in/ of the Joint Ventures fulfill all the specified requirements of the Bidding Documents and that , in such a case, the Bid shall be signed by all the partners so as to legally

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

bind all the Partners of the Joint Venture, who will be jointly and severally liable to perform the Contract and all obligations hereunder.

AND WHEREAS the bid is being submitted to the Employer vide proposal No.....dated by Party No.1 based on this Undertaking between all the parties; under these presents and the bid in accordance with the requirements of Section 2/ Section 3 of the Bidding Documents, has been signed in accordance with the provisions contained therein.

NOW THIS UNDERTAKING WITNESSETH AS UNDER:

In consideration of the above premises and agreements all the parties of this Deed of Undertaking do hereby declare and undertake:

1. In requirement of the award of the Contract by the Employer to the Joint Venture Partners, we, the Parties do hereby undertake that M/s..... the Party No.1, shall act as Lead Partner/ Lead Member/ Authorized Representative/ Partner-in- Charge of the Joint Venture, and further declare and confirm that we the parties to the Joint Venture shall jointly and severally be bound unto the Employer for the successful performance of the Contract and shall be fully responsible for the design, supply and installation of the Plant and for successful performance of the Contract in the event of award and performance of equipment in accordance with the Contract:
2. In case of any breach or default of the said Contract by any of the parties to the Joint Venture, the party(s) do hereby undertake to be fully responsible for the successful performance of the Contract and to carry out all the obligations and responsibilities under the Contract in accordance with the requirements of the Contract.
3. Further, if the Employer suffers any loss or damage on account of any breach in the Contract or any shortfall in the performance of the equipment in meeting the performances guaranteed as per the specification in terms of the Contract, the Party(s) of these presents undertake to promptly make good such loss or damages caused to the Employer, on its demand without any demur. It shall not be necessary or obligatory for the Employer to proceed against Lead Partner to these presents before proceeding against or dealing with the other Party(ies), the Employer can proceed against any of the parties who shall be jointly and severally liable for the performance and all other liabilities/obligations under the Contract to the Employer.
4. The financial liability of the Parties of this Deed of Undertaking to the Employer, with respect to any of the claims arising out of the performance or non-performance of the obligations set forth in this Deed of Undertaking, read in conjunction with the relevant conditions of the Contract shall, however not be limited in any way so as to restrict or limit the liabilities or obligations of any of the Parties of this Deed of Undertaking.

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5. It is expressly understood and agreed between the Parties to this Undertaking that the responsibilities and obligations of each of the Parties shall be as delineated in **Appendix – I** (*to be suitably appended by the Parties along-with this Undertaking in its bid*) to this Deed of Undertaking. It is further undertaken by the parties that the above sharing of responsibilities and obligations shall not in any way be a limitation of joint and several responsibilities of the Parties under the Contract.
6. It is also understood that this Undertaking is provided for the purposes of undertaking joint and several liabilities of the partners to the Joint Venture for submission of the bid and performance of the Contract and that this Undertaking shall not be deemed to give rise to any additional liabilities or obligations, in any manner or any law, on any of the Parties to this Undertaking or on the Joint Venture, other than the express provisions of the Contract.
7. This Undertaking shall be construed and interpreted in accordance with the provisions of the Contract.
8. In case of an award of a Contract, we the parties to this Deed of Undertaking do hereby agree that we shall be jointly and severally responsible for furnishing a Contract performance security from a bank in favour of the Employer in the currency/currencies of the Contract.
9. It is further agreed that this Deed of Undertaking shall be irrevocable and shall form an integral part of the bid and shall continue to be enforceable till the Employer discharges the same or upon the completion of the Contract in accordance with its provisions, whichever is earlier. It shall be effective from the date first mentioned above for all purposes and intents.

IN WITNESS WHEREOF, the Parties to this Deed of Undertaking have through their authorized representatives executed these presents and affixed Common Seals of their companies, on the day, month and year first mentioned above.

Common Seal of
has been affixed in my/ our
presence pursuant to Board of
Director's Resolution dated

For Lead Partner (Party No.-1)
For and on behalf of M/s
.....

Name

Designation

Signature

(Signature of the authorized
representative)

WITNESS :

I.

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II.

Common Seal of
has been affixed in my/ our
presence pursuant to Board of
Director's Resolution dated

For Party No.-2
For and on behalf of
M/s.....

Name

(Signature of the authorized
representative)

Designation

Signature

WITNESS :

I.

II.

Common Seal of
has been affixed in my/ our
presence pursuant to Board of
Director's Resolution dated

For Party No.-3
For and on behalf of M/s.
.....

Name

Designation

Signature

(Signature of the authorized
representative)

WITNESS :

I.

II.

Note:

1. For the purpose of executing the Joint Deed of Undertaking, the non-judicial stamp papers of appropriate value shall be purchased in the name of Joint Venture.
2. The Undertaking shall be signed on all the pages by the authorised representatives of each of the partners and should invariably be witnessed.
3. Appendix 1 must be enclosed

(Appendix to Technical Part of the Bid)

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**Joint Venture Agreement
(no specified format, bidders to use own format)**

Form 9

(Appendix to Technical Part of the Bid)

**Format for Details/ Data and Documentary Evidence in support of meeting the
Qualification Requirement**

Notes on Form of Qualification Information

The information is to be filled in by individual bidders. The following pages will be used for purposes of post-qualification as provided for in Section 2 / Section 3 of RFB/ bidding documents. This information will not be incorporated in the Contract. Attach additional pages as necessary.

NIT/RFB No.:

[insert details]

Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

(Qualifying Requirement Data)

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051XXXXX

{In case of JV bidder, mention name

and address of all the Joint Venture members}

Dear Ladies and/or Gentlemen,

In support of the Qualification Requirements (QR) for bidders, stipulated in Section-2 of the bidding documents, we furnish herewith our QR data/details/documents etc., alongwith other information, as follows (The QR stipulations have been reproduced in italics for ready reference, however, in case of any discrepancy the QR as given in Section-2 shall prevail).

* We have submitted bid as individual firm.

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* We have submitted bid as joint venture of following firms:

- (i)
- (ii)
- (iii)

(* *Strike-off whichever is not applicable*)

[For details regarding Qualification Requirements of a Joint Venture, please refer para 4.0 below.]

We are furnishing the following details/document in support of Qualifying requirement for the subject project.

I. Attached copies of original documents defining:

- a) The constitution or legal status;
- b) The principal place of business;
- c) The place of incorporation (for bidders who are corporations); or the place of registration and the nationality of the Owners (for applicants who are partnerships or individually-owned firms).

II. Attached original & copies of the following documents.

- a) Written power of attorney of the signatory of the Bid to commit the bidder.
- b)** Joint Venture Agreement

*[** To be submitted only in case of Joint Ventures. Strike off in case of individual firms.]*

III. Technical Experience QR Data/ Details/ Document

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Format A: Format for the Bidder (Single Firm / Partner(s) in case of Joint Venture) for technical experience in compliance to para 2.1 of Section-2 [In case of Joint Venture bidder, the QR data of each of the partner (in support of meeting the requirement of para 2.1.2 of Section-2)] is also to be furnished, as applicable, using this format. The bidder (Single Firm / Partner(s) in case of Joint Venture) who is willing to qualify in compliance to para 2.1 of Section-2 shall fill below format for two or all three contracts.

A1.	Name of Bidder/Lead Partner of JV/other partner(s) of JV	
A2.	Name of Contract (executed during the last 7 years up to 31.03.2022):	
A3.	Contract Reference No. & Date of Award	
A4	Name and Address of the Employer/Utility by whom the Contract was awarded e-mail ID _____ Telephone No. _____ Fax No. _____	
A5(i)	Name of completed work of project execution in electrical Transmission or sub-transmission & distribution sector	_____
(ii)	Cost of the project	_____
(iii)	% of cost w.r.t. estimated cost of this bid (in %)	_____
A6(i)	Date of successful execution of the Contract/Date of commissioning	_____
A7.	Capacity in which the Contract was undertaken (Check One) _____	☐ Prime Contractor ☐ Partner of JV ☐ Subcontractor

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		<i>(Tick whichever is applicable)</i>
A8.	Details/documentary evidence submitted in support of stated experience/Contract	

(Documentary evidence, such as copies of contract agreement/ letter of award/ utility certificates etc., in support of its experience shall be attached with the filled-up format for each experience/Contract)

IV. Financial/ Commercial QE Data/ Details/ Documents

Format B: Format for the Bidder (Single Firm / Partner(s) in case of Joint Venture) for financial/ commercial experience in compliance to para 2.2.1, 2.2.2, 2.2.3 of Section-2 [In case of Joint Venture bidder, the QR data of each of the partner (in support of meeting the requirement of para 2.2.4 of Section-2] is also to furnished, as applicable, using this format.

A1.	Name of Bidder/Lead Partner of JV/other partner(s) of JV	
A2.	Net-worth in last three years 1. Financial Year 2021-22 2. Financial Year 2022-23 3. Financial Year 2023-24	: Rs. ----- lakhs : Rs. ----- lakhs
A3.	Minimum Average Annual Turnover (MAAT) 1. Financial Year 2019-20 2. Financial Year 2020-21 3. Financial Year 2021-22 4. Financial Year 2022-23 5. Financial Year 2023-24	: Rs. ----- lakhs : Rs. ----- lakhs : Rs. ----- lakhs : Rs. ----- lakhs : Rs. ----- lakhs
A4	liquid assets (LA) and/ or evidence of access to or availability of credit facilities	: Rs. ----- lakhs
A4.	Details/documentary evidence submitted in support of stated details	

V. We understand that:

- i. . Sub contractors' experience and resources shall not be taken into account in determining the bidder's compliance with qualifying criteria.
- ii. One of the partners shall be nominated as lead partner, and the lead partner shall be authorized to incur liabilities and receive instruction for and on behalf of any and all partners of the joint venture and the entire execution of the contract including receipt of payment shall be done exclusively through the lead partner. This authorization shall be evidenced by submitting a power of attorney signed by legally authorized signatories of all the partners as per specified format.
- iii. All partner of the joint venture shall be liable jointly and severally for the execution of the contract in accordance with the contract terms and a copy of the agreement entered into by the joint venture partners having such a provision shall be submitted with the bid.

VI. We have furnished the following documents/details with Technical Part of your Bid:

- 2.1 A certificate from banker (as per format) indicating various fund based/non fund based limits sanctioned to the bidder and the extent of utilization as on date. Such certificate should have been issued not earlier than three months prior to the date of bid opening. Wherever necessary Employer may make queries with the Bidders' bankers.
- 2.2 The complete annual reports together with Audited statement of accounts of the company for last five years of its own (separate) immediately preceding the date of submission of bid.

Note:

- (a) In the event the bidder is not able to furnish the information of its own (i.e. separate), being a subsidiary company and its accounts are being consolidated with its group/holding/parent company, the bidder should submit the audited balance sheets, income statements, other information pertaining to it only (not of its

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group/Holding/Parent Company) duly certified by any one of the authority [(i) Statutory Auditor of the bidder /(ii) Company Secretary of the bidder or (iii) A certified Public Accountant] certifying that such information/documents are based on the audited accounts as the case may be.

(b) Similarly, if the bidder happens to be a Group/Holding/Parent Company, the bidder should submit the above documents/information of its own (i.e. exclusive of its subsidiaries) duly certified by any one of the authority mentioned in Note – 2.3 above certifying that these information/ documents are based on the audited accounts, as the case may be.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))} [#] {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

[#]*{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}*

Form 10**(Appendix to Technical Part of the Bid)****Format of Bought-out & Sub-contracted Items**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

Dear Sir/ Madam,

- 1.0 We hereby furnish the details of major items/ sub-assemblies; we propose to buy from our proposed sub-vendors/ subcontractors for the purpose of supply of Plant and Installation Services under the subject **Package/ Project:**

Sl. No.	Item Description	Quantity proposed to be bought-out/sub-contracted	Details of the proposed sub-contractor/sub-vendor	
			Name	Nationality
1.				
2.				
3.				
4.				
5.				
6.				

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2.0 We hereby declare that, in the event of award of Contract on us, we would not subcontract any portion of Installation Services under Part II of the Contract (Supply of Installation Services) and any major item other than those mentioned above under Part I of the Contract (Supply of Plant) without the prior approval of Employer as per the provisions of the Contract. We understand that for subcontract related to hiring of labor, prior approval of the Employer is not required.

3.0 We hereby declare that, total local content that will be sourced in the bid is more than 50% of the total content required under the project.

Dated the [Insert date of the month] day of [Insert month, year]
at [Insert place].

Signature {(of Bidder's authorized Bid Signatory (ies))[#] {In full and initials}}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

[#]{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 11**(Appendix to Technical Part of the Bid)****Format of Undertaking on Compliance of Terms & Conditions of the Bidding Documents including Scope of Work and other related requirements****UNDERTAKING ON COMPLIANCE OF RFB TERMS & CONDITIONS AND OTHER REQUIREMENTS****(To be submitted on ₹100 Stamp paper issued in the State where Bidder's office is located, duly signed by the authorized signatory)**

I/We hereby undertake that I/We have examined/ perused, studied and understood the Request For Bid (RFB) Document in respect of RFB no.

Dated _____ dated _____ and any corrigendum/ addendum/ clarification etc. thereto completely and have submitted my/our Proposal/ Bid in pursuance to the said RFB document for [insert Package Name/ Contract Title].

I/We hereby undertake that I/We understand that the scope of Services and other related requirement under and in pursuance of this RFB are indicative only and not exhaustive in any manner. I/We understand that the scope of Services may undergo changes as per emerging requirements of MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED as specified in the RFB document.

I/We hereby undertake that we shall comply with the scope of Services and other related requirements and the terms and conditions specified in the RFB document completely and except as mentioned in the Form 12 (Alternative, Deviations and Exceptions to the Provisions) hereof, we have no deviations and/or submissions and/or clarifications, whatsoever of any manner and/or sort and/or kind in this regard.

I/We hereby undertake to provide any further clarifications, details, documents etc. as may be required without changing the substance of our Proposal.

I/We understand that the MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED reserves the right to float a separate Request For Bid/ Notice Inviting Tender/ Invitation for Bids for the scope of Work and related requirements as covered under this RFB, irrespective of the outcome of this RFB, and I/We hereby undertake that we have no objection for the same. I/We understand that in such a case, I/We shall bid separately in response to such Request For Bid/ Notice Inviting Tender/ Invitation for Bids, and in no case our bid/ Proposal in response to this RFB shall be deemed as a Proposal/ Bid in response to such Request For Bid/ Notice Inviting Tender/ Invitation for Bids.

I/We hereby undertake to provide the Plant and Installation Services and undertake to be the single point of contact for MAHARASHTRA STATE ELECTRICITY DISTRIBUTION

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

COMPANY LIMITED for complete Scope of Work and related requirements as per the terms and conditions and as specified in this RFB document.

I/We hereby undertake that except as mentioned in the Form 12 (Alternative, Deviations and Exceptions to the Provisions) hereof, my/our bid is/ deemed to be as per the RFB document and is accordingly submitted to the MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED. In case of a failure to comply and/or variation MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED has the sole discretion not to consider or disqualify my/our Proposal/ bid for the aforementioned RFB and I/We shall not have any claim of any sort/kind/form on the same.

I/We agree to be bound by our Proposal for the period of validity as specified in and required as per Section 3 of RFB document and it shall remain binding upon us and may be accepted at any time before the expiration of that validity period as may be extended by us.

I/We hereby attach the duly signed and stamped RFB document as an unconditional acceptance and compliance of RFB specifications and terms & conditions as part of the Technical Part of our Bid without any deviations and/or submissions and/or clarifications of any manner and/or sort and/or kind in this regard, except as indicated in Form 12 (Alternative, Deviations and Exceptions to the Provisions) hereof ~~from my/our side.~~

I/We understand that mentioning of any pre-requisites, presumptions, assumptions, hiding/ twisting/ deletion/ reduction/ manipulation/ disguising of Scope of Works and/or application features and/or infrastructure and/or project deliverables etc. in any form and/or by any means and/or under any head shall not be constituted as a part of the Bid/ Proposal and in case of award of the Contract the same shall not be claimed by me/us while award and/or subsequently providing of Plant and Installation Services/ execution of work. The decision of MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED on such issues shall be binding on me/us and the same shall not be arbitrated upon by me/us.

I/We hereby undertake that we abide by all the terms and conditions mentioned in the RFB document along with amendment/corrigendum/ clarification, if any, as confirmed herein

We also confirm that in case any discrepancies/ inconsistencies and deviations/ omissions/ reservations, except as indicated in Form 12 (Alternative, Deviations and Exceptions to the Provisions) hereof, is observed in the online Price Part of our Bid, the same shall be deemed as withdrawn/rectified without any financial implication, whatsoever to MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

I/We understand that at any stage during the tenure of the Contract if it is found that any statement or document submitted by us is false/forged/invalid, MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED has discretion to terminate the Contract and get the Plant and Installation Services delivered / work done through third party.

I/We hereby affirm that the products and/or Plant and Installation Services offered by us

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

against this RFB are in compliance to the latest Government of India Guidelines for Make in India, Domestically manufactured products, Atmanirbhar Bharat and circulars DIPP Office Memorandum No. P-45021/2/2017-PP (BE-II) date:16th Sept. 2020, & MeitY Circular No.1(10)/2017-CLES dated 06.12.2019 as issued and amended from time to time and will remain complied to the same during the duration and execution of this assignment.

I/We also hereby affirm the following:

- a) I/ we are not insolvent, in receivership, bankrupt or being wound up, not have our affairs administered by a court or a judicial officer, not have our business activities suspended and am/ are not the subject of legal proceedings for any of the foregoing reasons;
- b) I/ we have not, and our directors and officers have not, been convicted of any criminal offence related to our/ their respective professional conduct or the making of false statements or misrepresentations as to our/ their qualifications to enter into a procurement contract within a period of two years preceding the commencement of this procurement process, or have not been otherwise disqualified pursuant to debarment proceedings;
- c) I/ we do not have a Conflict of Interest in the procurement in question as specified in the RFB document.
- d) I/ we comply with the code of integrity and other requirements as specified in the RFB document.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

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Form 12**(Appendix to Technical Part of the Bid)****Format of Alternative, Deviations and Exceptions to the Provisions of RFB Document**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051XXXXX*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

Dear Sir/ Madam,

The bidder shall itemize any deviation from the Specifications included in his bid. Each item shall be listed (separate sheets may be used and enclosed with this Attachment) with the following information:

Sl. No.	Reference clause in the Specifications	Deviation	Cost of withdrawal of the deviation

The above deviations and variations are exhaustive. We confirm that we shall withdraw the deviations proposed by us at the cost of withdrawal indicated in this attachment, failing which our bid may be rejected and Bid Security forfeited.

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Except for the above deviations and variations, the entire work shall be performed as per your specifications and documents. Further, we agree that any deviations, conditionality or reservation introduced in this Attachment-6 and/or in the Bid form, Price schedules & Technical Data Sheets and covering letter, or in any other part of the bid will be reviewed to conduct a determination of the substantial responsiveness of the bid.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address}_____

{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 13**(Appendix to Technical Part of the Bid)****Format of Work Completion Schedule**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

Dear Sir/ Madam,

We hereby declare that the following Work Completion Schedule shall be followed by us in furnishing and installation of the subject Project for the period commencing from the effective date of Contract to us:

Sl. No.	Description of Work	Period in months from the effective date of Contract
1.	Detailed Engineering and drawing submission a) commencement b) completion	
2.	Procurement of equipment/ components & assembly a) commencement b) completion	
3.	Type Tests a) commencement	

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Sl. No.	Description of Work	Period in months from the effective date of Contract
	b) completion	
4.	Manufacturing a) commencement b) completion	
5.	Shipments & Delivery a) commencement b) completion	
6.	Establishment of site office	
7.	Installation at Site a) commencement b) completion	
8.	Testing & Pre-commissioning a) commencement b) completion	
9.	Trial Operation a) commencement b) completion	

Notwithstanding the above we reiterate our compliance to the Time for Completion of the Facilities/ Works as per the provisions of the RFB document.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

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Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address}_____

{For a joint venture, either all members shall sign or only the authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Note: Bidders to enclose a detailed network covering all the activities to be undertaken for completion of the project indicating key dates for various milestones for each phase constituent-wise.

Form 14**(Appendix to Technical Part of the Bid)****Format of Guarantee Declaration**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),
 MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED
 Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051

*{In case of JV bidder, mention name
 and address of all the Joint Venture members}*

Dear Sir/ Madam,

We confirm that the plant/ equipment/ goods/ material offered shall have minimum (or maximum, as the case may be) of the performance specified in the RFP document/ Employer's Requirement/ Specification/ Scope of Work. We further guarantee the performance/ efficiency of the plant/ equipment/ goods/ material offered in response to RFP document/ Employer's Requirement/ Specification/ Scope of Work.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
 at *[Insert place]*.

 Signature {(of Bidder's authorized Bid Signatory (ies))}# *{In full and initials}*:
Full name: *{insert full name of authorized Bid Signatory }*Title: *{insert title/position of authorized Bid Signatory }*

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: *{insert the person's capacity to sign for the Bidder}*Address: *{insert the authorized Bid Signatory's address}*

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

{For a joint venture, either all members shall sign or only the authorised signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 15**(Appendix to Technical Part of the Bid)****Format of Information regarding Ex-employees**

(The information in similar format should be furnished for each partner of joint venture in case of joint venture bid)

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),
 MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED
 Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai -
*{In case of JV bidder, mention name
 and address of the concerned Joint Venture member}*

Dear Sir/ Madam,)

**(Information regarding Ex-employees of MAHARASHTRA STATE ELECTRICITY
 DISTRIBUTION COMPANY LIMITED in our Organization)**

Dear Sir/ Madam,

We hereby furnish the details of ex-employees of MAHARASHTRA STATE ELECTRICITY
 DISTRIBUTION COMPANY LIMITED who had retired/ resigned at the level of **XXXXXX**
(Define suitable post) from MAHARASHTRA STATE ELECTRICITY DISTRIBUTION
 COMPANY LIMITED and subsequently have been employed by us:

Sl. No.	Name of the person with designation in	Date of Retirement/ resignation from	Date of joining and designation in our
---------	--	--------------------------------------	--

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED
**XXXXX (Name of XXXXX MAHARASHTRA STATE ELECTRICITY DISTRIBUTION
 COMPANY LIMITED**

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

(Name of Employer)	Organization Employer)
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1.

2.

3.

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidders's authorized Bid Signatory (ies))[#] {In full and initials} :

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

[#]*{For a joint venture, either all members shall sign or only the concerned member and authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}*

Note: .

Form 16**(Appendix to Technical Part of the Bid)****Format for Price Adjustment Data**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

Dear Sir/ Madam,

We hereby furnish the details of Price Adjustments:

Name of Material***	Price as on 30 days prior to date of bid opening*	Price as on XX days prior to date of shipment*	Variation*
ACSR conductor		NA**	NA**
Power Transformer (aluminium wound)		NA**	NA**
Power Transformer (Copper wound)			
Distribution Transformer (aluminium wound)			
Distribution Transformer (Copper wound)			
Cables		NA**	NA**

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*Detailed calculations as per **Appendix-2 of Form 5** to be enclosed

** Not to be filled at the time of bid submission

*** The materials listed are illustrative, a separate row to be created for each material for indicating price adjustment

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidder's authorized Bid Signatory (ies))}# {In full and initials}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

{For a joint venture, either all members shall sign or only the concerned member and authorized signatory as per ITB 19.4, in either case the power of attorney of the authorized bid signatory (signatories) must be attached}

Form 17**(Appendix to Technical Part of the Bid)****Format of Option for Initial Advance (either Interest Bearing Initial Advance or No Initial Advance) and Information for E-payment, PF details and declaration regarding Micro/Small & Medium Enterprises**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}*

Dear Sir/ Madam,

- I. We have read the provisions in the Bidding Documents regarding the option for advance payment. Accordingly, we hereby confirm to opt the following:

Interest Bearing Initial Advance

Supply of Plant Portion: Yes* [] No* []

Supply of Installation Services Portion: Yes^ [] No^ []

(*^ tick ONLY ONE of the selected options)

- II. We are furnishing the following details of Statutory Registration Numbers and details of Bank for electronic payment.

1.	Name of the Supplier/ Contractor in whose favor payment is to be made	
2.	Address with PIN Code and State	Registered Office: Branch Office: Correspondence Address:

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3.	Status – Company/others [Declaration of Micro/ Small/ Medium Enterprise under Micro/ Small & Medium Enterprises Development Act 2006, if applicable]	
4.	Permanent Account (PAN) No.	
5.	Goods and Services Tax Registration No..	
6.	PF Registration No. of the Company	
7.	PF Regional Office covered (with Address)	
8.	Name of Contact Person	
9.	Telephone No(s). Email	Landline(s): Mobile(s): Email ID :
10.	Bank Details for Electronic Payment	Name of the Bank: Address of Branch: Account No.: Type of Account: [] Saving [] Current
11.	9 digit MICR code printed at bottom in middle, next to cheque no.	
12.	IFSC (for RTGS)/NEFT Code (<i>to be obtained from the Bank</i>) <i>Sample Cancelled Cheque to be enclosed</i>	

We hereby declare that the above information is true and correct and we agree that the payment on account of this Contract, in the event of award, be made in the above account maintained in the above mentioned Bank.

Dated the [Insert date of the month] day of [Insert month, year]
at [Insert place].

Signature {(of Bidders's authorized Bid Signatory (ies))} # {In full and initials}:

Full name: {insert full name of authorized Bid Signatory}

Title: {insert title/position of authorized Bid Signatory}

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)

Form 18**(Appendix to Technical Part of the Bid)****FORMAT OF Declaration for tax exemptions, reductions, allowances or benefits)**

NIT/RFB No.:

.....

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),
 MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED
 Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051

*{In case of JV bidder, mention name
 and address of all the Joint Venture members}*

Dear Sir / Madam,

1. We confirm that we are solely responsible for obtaining following tax exemptions, reductions, allowances or benefits in respect of supplies under the subject Package/ Project, in case of award. We further confirm that we have considered the same in our bid thereby passing on the benefit to **XXXXX (Name of Employer)** while quoting our prices. In case of our failure to receive such benefits, partly or fully, for any reason whatsoever, the Employer will not compensate us.
2. We are furnishing the following information required by the Employer for issue of requisite certificate if and as permitted in terms of the applicable Govt. of India policies/procedures (in case of award):

Applicable Act, Notification No. and Clause Ref. No.	Sl. No.	Description of item on which applicable	Country of origin	Remarks, if any

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(The requirements listed above are as per current Notification of Govt. of India indicated above. These may be modified, if necessary, in terms of the Notifications.)

Dated the *[Insert date of the month]* day of *[Insert month, year]*
at *[Insert place]*.

Signature {(of Bidders's authorized Bid Signatory (ies))[#] {In full and initials}}:

Full name: {insert full name of authorized Bid Signatory }

Title: {insert title/position of authorized Bid Signatory }

Name of Bidder (Sole Bidder's name or Consortium/ JV's name, if applicable):

Capacity: {insert the person's capacity to sign for the Bidder}

Address: {insert the authorized Bid Signatory's address}

Phone/fax: {insert the authorized Bid Signatory's phone and fax number, if applicable}

Email: {insert the authorized Bid Signatory's email address} _____

Form 19**(Appendix to Technical Part of the Bid)****Format of Bank Guarantee verification Check list**

NIT/RFB No.:

*[insert details]*Package Name/ Contract Title: *[insert details]*

Page _____ of _____ pages

Bidder's Name and Address:

To:

The Chief Engineer (Spl. Projects),

MAHARASHTRA STATE ELECTRICITY DISTRIBUTION COMPANY LIMITED

Plot no. G-9, 5th floor, Prakashgad, Anant Kanekar Marg, Bandra (East), Mumbai - 400051*{In case of JV bidder, mention name**and address of all the Joint Venture members}***(Bank Guarantee verification Check list)**

Dear Sir/ Madam

We have ensured compliance to the following checklist in submission of Bank Guarantee :

S. No.	Checklist	Yes	No
1	Does the bank guarantee compare verbatim with standard proforma for BG?		
2(a)	Has the executing Officer of BG indicated his name designation & Power of Attorney No. / Signing power Number etc. on BG?		
2(b)	Is each page of BG duly Signed/ initialed by the executants and last page is signed with full particulars as required in the standard proforma of BG and under the seal of the bank?		
2(c)	Does the last page of the BG carry the signatures of two witnesses alongside the signature of the executing Bank Manager?		

Tender No: CE-SPD/ADB/2026-27/ T-13 (Nagpur Zone)